

Opinion of KENNEDY, J.

one and not the other.’” *Ante*, at 273, quoting *Hampton v. Chicago*, 484 F. 2d 602, 608 (CA7 1973), cert. denied, 415 U. S. 917 (1974). Nonetheless, while Buckley labels the prosecutors’ actions relating to the footprint experts as “investigative,” I believe it is more accurate to describe the prosecutors’ conduct as preparation for trial. A prosecutor must consult with a potential trial witness before he places the witness on the stand, and if the witness is a critical one, consultation may be necessary even before the decision whether to indict. It was obvious from the outset that the footprint was critical to the prosecution’s case, and the prosecutors’ consultation with experts is best viewed as a step to ensure the footprint’s admission in evidence and to bolster its probative value in the eyes of the jury.

Just as *Imbler* requires that the decision to use a witness must be insulated from liability, 424 U. S., at 426, it requires as well that the steps leading to that decision must be free of the distortive effects of potential liability, at least to the extent that the prosecutor is engaged in trial preparation. Actions in “obtaining, reviewing, and evaluating” witness testimony, *id.*, at 431, n. 33, are a classic function of the prosecutor as advocate. Pretrial and even preindictment consultation can be “intimately associated with the judicial phase of the criminal process,” *id.*, at 430. Potential liability premised on the prosecutor’s early consultation would have “an adverse effect upon the functioning of the criminal justice system,” *id.*, at 426. Concern about potential liability arising from pretrial consultation with a witness might “hampe[r]” a prosecutor’s exercise of his judgment as to whether a certain witness should be used. *Id.*, at 426, and n. 24. The prospect of liability may “induc[e] [a prosecutor] to act with an excess of caution or otherwise to skew [his] decisions in ways that result in less than full fidelity to the objective and independent criteria that ought to guide [his] conduct.” *Forrester v. White*, *supra*, at 223. Moreover, “[e]xposing the prosecutor to liability for the initial phase of